

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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HAROLD HOUSTON
and BILAL BURNETT,

Plaintiffs,

-against-

VERIFIED COMPLAINT
AND DEMAND FOR
A JURY TRIAL

THE CITY OF NEW YORK,
N.Y.C. POLICE OFFICER JOHN
FERREIRA, SHIELD # 7431, AND
MANUEL CHECO, SHIELD # 5178,
EACH SUED INDIVIDUALLY AND IN
HIS OFFICIAL CAPACITY,

Defendants.

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1. This is an action for compensatory and punitive damages for violation of Plaintiffs' rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States by reason of the unlawful acts of defendants.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983. Jurisdiction is founded upon 28 U.S.C. § 1343. Venue is proper in this district under 28 U.S.C. § 1391(b) in that all claims arose in this district.

PARTIES

3. Plaintiffs are residents of New York, New York in New York State.

4. At all times hereinafter mentioned, the Defendant Police Officers were employees of the New York City Police Department (HEREINAFTER REFERRED TO AS "N.Y.P.D.") acting within the scope and authority of their employment. They are being sued individually and in their official capacity

as New York City Police Officers.

5. The Defendant CITY OF NEW YORK, (HEREINAFTER REFERRED TO AS "City"), was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and as such maintained the New York City Police Department and employed the individual Defendants sued herein.

6. Upon information and belief the City was responsible for the training of its police officers.

7. That at all times herein the defendant, City, was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and/or employees of the N.Y.P.D.

8. That at all times mentioned herein the Defendant, City, knew or should have known of the discriminatory nature, bad judgment, and unlawful propensities of the officer involved in the violation of civil rights of the Plaintiff.

FACTS

9. On or about February 19, 2014, at approximately 6:20 A.M., plaintiffs were in their apartment located at 60 E. 104th Street, Apt. 6D, in New York, New York.

10. At that time, the defendant officers executed a search warrant obtained based upon a belief that an individual named David Houston was selling marijuana out of said apartment.

11. Prior to entering said apartment, the defendant officers possessed a full description of David Houston, whom they knew to be a light-complexioned black man, about 20 years old.

12. Upon entry into said apartment, the defendants did not find David Houston, but instead observed an older man, 61 year-old Harold Houston and Bilal Burnett, a dark-skinned 26 year-old man, who upon even minimal scrutiny was a "special needs" individual.

13. The defendants searched the apartment and apparently found marijuana in a front bedroom which had two beds in it.

14. Plaintiff Harold Houston told the police that the front bedroom was shared by his son David

and informed them that he was about to take Bilal to a program called “YAI Day-Habilitation”, where Bilal had been going five days a week for five years. At this facility, Bilal is taught life skills, including job training and performs various community service, such as delivering food to the elderly.

15. Instead of letting plaintiffs go, the defendants arrested both Harold and Bilal. The police falsely claimed that they also found a bag of marijuana in a rear bedroom, and accused Harold of possessing said marijuana as well as the other marijuana even though he was not in either bedroom when the police arrive. When the police entered, Harold was in the kitchen making Bilal breakfast.

16. Both plaintiffs were arrested and handcuffed, and taken to the local precinct.

17. At approximately 12:00 P.M., Bilal’s mother was allowed to come to the precinct and pick up Bilal Burnett, who was given a summons to go to court at a later date.

18. Also, David Houston went to the precinct and told the police that he was there to turn himself in. He implored the police to release his father, but they refused.

19. Plaintiff Harold Houston was falsely accused of possessing the marijuana in the apartment although there was no probable cause to believe that any of it was his.

20. Plaintiff Harold Houston was also falsely accused of possessing an air pistol based upon the recovery of an antique gun, which was obviously inoperable, nor did it qualify as an air pistol, which requires that the propelling force be a spring or air.

21. After a number of court appearances all charges were dismissed against both plaintiffs.

22. Defendant City of New York has pursued a policy and custom of deliberate indifference to the rights of persons in its domain, including the Plaintiffs, in its procedures for supervising and removing, when appropriate, unstable and violent / incompetent police officers from their duties, including but not limited to the fact that Defendants City and/or N.Y.P.D. knew of the individual Defendant's tendencies to make unlawful arrests, unlawful seizures, and otherwise commit unlawful acts, but took no steps to correct or prevent the exercise of such tendencies.

23. Defendant City knew or should have known prior to this date of the perpetration of unlawful arrests and other unlawful acts by the defendant was occurring, in that, upon and information and belief, there were prior reports of such unlawful conduct by these specific officers.

24. Defendant City and N.Y.P.D., among other deficiencies, failed to institute a bona fide procedure in which Defendant City and/or N.Y.P.D. investigated the unlawful acts of Defendants or properly investigated reports of their alleged misconduct.

**FIRST CAUSE OF ACTION FOR
VIOLATION OF CIVIL RIGHTS**

25. Plaintiff reiterates and realleges the facts in the preceding paragraphs as if stated fully herein.

26. As a result of their actions. Defendants, under "color of law", deprived plaintiff of his right to freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983.

27. Defendant subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard for whether Plaintiff's rights would be violated by his actions.

28. As a direct and proximate result of the acts of Defendants, Plaintiff suffered physical injuries, endured great pain and mental suffering, and was deprived of his physical liberty.

**SECOND CAUSE OF ACTION
FOR VIOLATION OF CIVIL RIGHTS**

29. Plaintiff reiterates and realleges the facts stated in the preceding paragraphs as if stated fully herein.

30. Defendant City and N.Y.P.D., through The N.Y.C. Police Commissioner, as a municipal policymaker, in the hiring, training and supervision of the Defendant officers, have pursued a policy and

custom of deliberate indifference to the rights of persons in their domain, and Plaintiffs, violating Plaintiffs' rights to freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

31. As a direct and proximate result of the aforementioned policy and custom of deliberate indifference of Defendants City and N.Y.P.D., Defendant officers committed the unlawful acts referred to above. Thus, Defendant City is liable for Plaintiffs injuries.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays that this Court:

1. Enter a judgment that defendants, by their actions, violated Plaintiffs' rights under state law, and violated Plaintiffs rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and violated Plaintiffs rights under State law; and,
2. Enter a judgment, jointly and severally, against Defendants, and The City of New York for compensatory damages in the amount of FIVE HUNDRED THOUSAND (\$500,000.00) Dollars; and,
3. Enter a judgment, jointly and severally against the Defendant officer and The City of New York for punitive damages in the amount of ONE MILLION (\$1,000,000.00) Dollars; and,
4. Enter an Order:
 - a) Awarding plaintiff's reasonable attorney's fees and litigation expenses pursuant to 42 U.S.C. § 1988;
 - b) Granting such other and further relief which to the Court seems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff hereby demands a trial by jury.

Dated: New York, New York
June 3, 2015

RESPECTFULLY,

/s/

STEVEN A. HOFFNER, ESQ.
Attorney for the Plaintiff
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New York, New York 10007
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(SH-0585)

VERIFICATION

STEVEN A. HOFFNER, an attorney admitted to practice in the Courts of the State of New York states:

That the affirmant is the attorney of record for the plaintiffs in the within action.

That the affirmant has read the foregoing Complaint and knows the contents thereof.

That the same is true as to affirmant's knowledge, except as to matters therein alleged to be on information and belief, and as to those matters affirmant believes them to be true.

That the reason this verification is made by affirmant is because the plaintiffs do not reside in the county wherein affirmant maintains his office.

That the grounds of my belief as to all matters not stated upon my own knowledge are as follows: investigation, client conferences, and review of the file.

The undersigned affirms that the following statements are true, under the penalties of perjury.

Dated: New York, New York
June 3, 2015

/s/
STEVEN A. HOFFNER, Esq.

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